

E Roz <evanroz@gmail.com>

RE: Tenant Rights in this situation1 message

+WPG725 - CCA RTB <rtb@gov.mb.ca>

Fri, Dec 8, 2023 at 11:54 AM

To: Evan Rosner <evanroz@gmail.com>

The right of first refusal refers to a tenants right to move back in once the renovations are complete. It does not imply any right to refuse the renovations.

If you refuse to move out based on the notice the landlord has the right to file for an Order of Possession.

Assuming that the landlord had followed the procedure correctly (using proper form, following proper timeline) it could be a very easy win for them if they pursued an eviction against you, in such a situation.

If the landlord does not do the renovations within six months of the tenant moving out, the tenant can come back and make a claim against the landlord on the basis that they gave the notice in bad faith. This can include claiming for the difference of your rent for up to twelve months.

The landlord has no obligation to provide you with an alternative apartment while they are doing the renovations.

The landlord must provide a breakdown of the renovations they intend to do and an estimate of what the rent will be when the renovations are complete.

RTB/SS

From: Evan Rosner <evanroz@gmail.com>**Sent:** December 8, 2023 11:00 AM**To:** +WPG725 - CCA RTB <rtb@gov.mb.ca>

Subject: Re: Tenant Rights in this situation

Hello,

Any updates for me? The clock is ticking and I don't want to be forced to relocate and neither do I want to be forced into having my home renovated.

Thanks,
Evan

On Wed, Nov 22, 2023 at 9:35 AM Evan Rosner <evanroz@gmail.com> wrote:

Good morning,

Thank you for the information.

I do not intend to refuse entry but I would like to dispute the potential renovations and prevent them from occurring. Can you please define for me 'right of first refusal'?

Yes, I would like the RTB to contact them because they were unable to answer my questions;

1. What is the location of the apartment that you have suggested for the tenant to occupy during renovations?
2. What is your proposed timeline for renovations?
3. Please list ALL of the renovations that you have planned for this suite.

Instead their response was, "We also work closely with RTB to ensure our residents' rights are protected during renovations. Please let me know if RTB says anything different.

We've been talking about doing this project in early January. The project is in planning stage, and we will keep you updated on the requested information as it comes."

You can contact Thorwin Properties at Dasha.dorofeeva@thorwin.ca, carol.patterson@thorwin.ca, grant.steele@thorwin.ca.

Thank you for your time,

Evan Rosner

On Wed, Nov 22, 2023 at 9:25 AM +WPG725 - CCA RTB
<rtb@gov.mb.ca> wrote:

Hello,

The landlord has a right to enter your unit for the following reasons:

Landlord's right to enter rental unit

54(1) A landlord shall not enter a rental unit occupied by a tenant under a tenancy agreement except where

- (a) an emergency exists and entry to the rental unit is necessary;
- (b) the tenant consents to the entry;
- (c) the landlord shows the rental unit to a prospective tenant after notice of termination is given under this Act but before the tenant has vacated the unit;
- (d) the landlord inspects the rental unit on the day the tenant is required to vacate the unit to complete a rental unit condition report or to determine if the tenant has fulfilled the tenant's obligations under this Act and the tenancy agreement, and the inspection takes place at a reasonable time;
- (e) the landlord in good faith believes that the rental unit has been abandoned by the tenant and gives written notice to the tenant in accordance with subsection (2);
- (f) the landlord gives written notice in accordance with subsection (3) and entry is for one of the following purposes:
 - (i) to perform an obligation of the landlord under this Act or the tenancy agreement or to inspect the rental unit to determine if an obligation should be performed,
 - (ii) to complete a rental unit condition report if the tenant has requested the landlord's consent to an assignment or subletting,
 - (iii) to permit a mortgagee or insurer or prospective mortgagee or insurer to inspect the unit when a mortgage or insurance coverage is being arranged or renewed on the residential complex, or
 - (iv) to show the rental unit to prospective purchasers of the rental unit or residential complex;

(g) the landlord enters the rental unit to provide tenant services to the tenant in accordance with the tenancy agreement.

You will notice that renovations is not listed in that section of the Act. There is a separate process for doing extensive renovations and that process involves terminating your tenancy where you would have to move out completely so that they can do the renovations. If you wanted to move back in after those renovations are completed you would have the right of first refusal. The question becomes, is this an extensive renovation? If it would mean that you would be without water and maybe even electricity for some extended period of time, it might qualify as that.

If you refuse them entry to do this they may give you a warning letter stating that you cannot refuse entry. If you continue to refuse entry after that they could give you an eviction notice. If that happens you have a right to dispute the notice and not move. They would more than likely contact us to schedule a hearing about the eviction and at this hearing we would then make a decision on whether you had a right to refuse and whether this was something the landlord had a right to do.

We can also try to reach out to the landlord and ask them some questions about this and determine whether or not they can do this now or after terminating a tenancy. If you would like us to contact them please provide a contact and phone number for your landlord.

Thanks.

Rtb/lg

From: Evan Rosner <evanroz@gmail.com>
Sent: November 17, 2023 3:39 PM
To: +WPG725 - CCA RTB <rtb@gov.mb.ca>
Subject: re: Tenant Rights in this situation

Greetings,

I have been informed by the landlord that they intend to renovate part of the suite I occupy which I am strongly opposed to.

As well, Throwin Property's plan is to remove the storage facility and the washing services from the building in order to create two more units. I use the washing services and I use the storage space as I have been for my entire tenancy for the past 11 years.

They propose installing a washer and dryer in my suite but the electrical system is a fusebox from the 1950s so it will require upgrade, the plumbing will require ripping the floor up to extend the pipes, the closet they intend to use is too small for the dimensions of ANY washer and dryer combination unit, and this will cause a reduction of storage space which will already be reduced because of their removal of the storage unit.

These proposed changes will significantly affect my life as I work from home, my cat will be disturbed, and I do not want these renovations done.

This corporation has increased my rent consistently above the guidelines each year that they have had ownership of the property.

They are aware that I do not want any renovations and they have not provided me with any timeline or compromise nor any plan to address my concerns.

What are my options here? Am I legally allowed to refuse entry?
What is the process in seeking arbitration?

Thank you for your response.

Sincerely,
Evan Rosner

10-585 Corydon Ave

R3L0P3

Winnipeg, MB

Please find attached my email correspondence with Thorwin Properties.

Nov 17,2023

Hi Evan,

Thank you for letting me know about your concerns regarding our plans for renovations. It is going to be uncomfortable, and it won't look pretty for just the two weeks, however, in the end, I am almost certain that you will notice the value and feel happy about in-suite laundry. In addition, we put aside a vacant apartment, and you will be able to use it at any time until your apartment is fully put back together.

Sincerely,

Dasha Dorofeeva

Property Manager

E-mail: Dasha.Dorofeeva@thorwin.ca

Direct: 204-594-5410

Office: 204-222-2422

www.thorwin.ca

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From: Evan Rosner <evanroz@gmail.com>
Sent: Monday, November 13, 2023 10:22 AM
To: Dasha Dorofeeva <Dasha.dorofeeva@thorwin.ca>
Subject: Fwd: Laundry Services at [585 Corydon Ave](#)

Good morning Dasha,

I have been expecting a response from Darren Willcox for several months and I have just learned he was let go. I have questions and concerns about Thorwin's plan for my suite.

Thank you,

Evan

----- Forwarded message -----

From: **Evan Rosner** <evanroz@gmail.com>
Date: Mon, Nov 13, 2023 at 10:13 AM
Subject: Re: Laundry Services at [585 Corydon Ave](#)
To: Darren Wilcox <Darren.Wilcox@myplace.ca>

Greetings,

I hope you're doing well.

Last Friday Thorwin agents came to my suite to identify a solution for the upcoming removal of laundry services and storage facilities with the goal of installing en suite laundry machines.

It has been 129 days since my previous email to you regarding this issue and I have not received any clarity on what your plan is.

The electrical system in my suite is from the 1950s, there is no storage space for a washer/dryer in the suite, and if there were some space with which to place the units it would require opening up the floor boards and extending the pipes.

My understanding is that Thorwin has full intention of removing the storage and laundry services, which I have paid for in my entire residency here, forcing a renovation on me that will negatively affect my quality of living through the day to day work, reducing my storage space capabilities, and of course, increasing the rent far above what it should be if provincial guidelines were followed in good faith.

I want to be clear that I do not want en suite laundry services and I do not want my storage space removed.

I look forward to hearing your solutions.

Thank you,

Evan Rosner

10-585 Corydon Ave

On Fri, Jul 7, 2023 at 12:20 PM Evan Rosner
<evanroz@gmail.com> wrote:

Greetings,

I'm looking for clarification of laundry services for this year. I expect the laundry and storage facilities to be removed. I would like to know what you have in mind for me as I have signed our renewal, the electrical system and plumbing system in my suite will not be able to handle on suite laundry services, and I require storage space.

Keeping in mind that I have been a long term resident in good standing I would appreciate some consideration in this matter.

Thank you,

Evan Rosner